

Bihar Neera (Unfermented Juice of Palms) Rules, 1953

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State of Bihar - Act

Bihar Neera (Unfermented Juice of Palms) Rules, 1953

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Bihar Neera (Unfermented Juice of Palms) Rules, 1953

Rule BIHAR-NEERA-UNFERMENTED-JUICE-OF-PALMS-RULES-1953 of 1953

Published on 31 August 1953

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Bihar Neera (Unfermented Juice of Palms) Rules, 1953

Published vide Notification No. 23-8/53-10 the 31st August, 1953

No. 23-8/53-10 the 31st August, 1953. - In exercise of the powers conferred by clause (a) of sub-section (1) of Section 90 of the Bihar and Orissa Excise Act, 1915 (Bihar and Orissa Act II of 1915), the Board of Revenue, Bihar is pleased to make the following Rules to regulate the tapping of palmyra, date or any other palm trees and sale of Neera, namely:-

[Rules]

[See also S.O. 187 dated 1.4.1991.]

1.

Short title.

- These Rules may be called the Bihar Neera (Unfermented Juice of Palms) Rules, 1953.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context-

(a)

"The Act" means the Bihar and Orissa Excise Act, 1915;

(b)

"Licensing Authority" means the Collector of the district or any other authority empowered by the State Government to grant a licence under Section 14;

(c)

"Form" means form appended to these rules;

(d)

"Neera" means unfermented juice drawn from any coconut, palmyra, dates or any other palm trees;

(e)

"section" means a section of the Act; and

(f)

"tree" means a Neera producing tree.

3.

Application for licence.

(1)

Any person desiring-

(i)

to tap a tree and draw Neera therefrom-

(a)

for the manufacture of gur or any other product which is not an intoxicant; or

(b)

for the supply of Neera-

(i)

to persons licensed to manufacture gur or any other article which is not an intoxicant from Neera: or

(ii)

to persons licensed to sell Neera by retail for consumption on premises; or

(c)

for domestic consumption with the prior permission of the Excise Commissioner; or

(ii)

to sell Neera by retail for consumption on premises;

may make an application in Form no. I for a licence to the Licensing Authority at least a fortnight before the date of tapping a tree or the sale of Neera as the case may be. An application for tapping trees situated on any Government land shall be accompanied by a certificate from the Government Department concerned to the effect that the applicant has been granted permission to tap the trees.

(2)

The Licensing Authority may, in his discretion, grant or refuse a licence. The Licensing Authority shall record his reasons in writing for refusing a licence. If the Licensing authority decides to grant a licence. He shall issue the same in Form Nos. II, III, IV and V, as the case may be, ordinarily within a fortnight from the date of receipt of the application; but he may, for any special reasons to be recorded in writing issue the same after the expiry of the said period.

4.

Period of licence.

- A licence granted under sub-rule (2) of Rule 3 shall remain in force for a period of one year from the 1st day of April, to the 31st day of March, following (both days inclusive):

Provided that licence granted on a date subsequent to the 1st day of April shall be granted only for the period from that date to the 31st March following.

5.

Fees for licence.

- No fee shall be charged for a licence to tap trees for the manufacture of gur or any other product which is not an

intoxicant or for domestic consumption of Neera, but a fee shall be charged for licence for

- (a)
the sale of Neera by retail, or
- (b)
the supply of Neera for sale [at the rates of Rs. 5 per month and Rs. 50 per year respectively]
[Vide Notification No. 23-9/54-4-dated 18.5.1954.]

The Board may exempt any Social Service Institution from payment of such Substituted by [fees.]
[S.O. 1281 dated 18.8.1979.]

6.
Place of manufacture or of sale.

- (1)
The manufacture of gur or any other product which is not an intoxicant shall be carried on at the place specified in the licence (hereinafter called "the place of manufacture") Neera shall be sold at the place mentioned in the licence (hereinafter called "the place of sale.")

- (2)
A licence shall generally be issued for drawing Neera from trees in selected [taps within a radius of one mile from the place of manufacture or the place of sale]:
Provided that the Licensing Authority may, in its discretion grant a licence for the tapping of trees beyond such radius, if it is satisfied that for any special reasons such licence is necessary.

7.
Ineligibility of licence.

- No licence to tap trees and draw, supply or sell Neera shall be issued to any person who holds or has any person who holds or has any direct or indirect interest in any toddy shop.

8.
Condition of tapping.

- The licensee shall not tap any tree in excess of the number which he is licensed to tap. No tree which is less than [1.50 metres]

[Substituted by S.O. 1281 dated 18.8.1979.]
feet in height from the ground level shall be tapped nor shall Neera be drawn therefrom. No pots shall be attached for such purpose to any Neera producing trees more than five feet in height until the licence therefor has been issued and until the trees have been marked and numbered in the manner so specified in Rule 9. Neera shall be drawn and collected only in such receptacles as have been treated in the following manner:-

[They should be thoroughly washed with water. They should then be half filled with water, which should be heated to boiling point and kept boiling for at least fifteen minutes. They should thereafter be emptied and heated on bare flame to kill any residual yeast cells. They should then be smoked over burning straw leaves. 1.25 grams of lime per litre of Neera, in finely powdered state should be in the receptacles to keep the Neera in unfermented state.]

[Substituted by S.O. 1281 dated 18.8.1979.]

9.
Marking and numbering the trees.

- No tree shall be tapped and Neera drawn therefrom unless it has been marked with a deep coloured two in chess broad [ring having a diameter of 5.0 cms.] and the serial number of the trees above this ring in the same manner as in the case of other tari producing trees. The marking will be done by an Excise Officer.

10.
Nokarnama.

- Every agent or tapper employed by the licensee in connection with his licence shall be provided with a nokarnama signed and dated by the licensee. The name of such employee together with the date on which he is appointed shall be communicated forthwith in writing by the licensee to the Licensing Authority in charge of the area in which the place of manufacture or the place of sell, may employ at a time shall be fixed by the Licensing Authority on consideration of the number of trees tapped and other relevant circumstances.

11.

Time.

- No Neera shall be taken down from trees except between sunrise and sunset unless otherwise directed by the Excise Commissioner or any other Excise Officer duly authorised by him on this behalf.

12.

Use of Neera.

- No Neera drawn from trees tapped under a licence and intended to be utilised in the manufacture of gur or any other product, which is not an intoxicant, shall be kept at the place of manufacture till sunrise of the next day unless it is boiled, and no such boiled Neera shall be kept for more than 24 hours from the time it is boiled.

13.

Transport of Neera.

- Neera drawn under a licence shall not be mixed or adulterated with any substance or liquid or taken to any place other than the place of manufacture or the place of sale, as the case may be, unless a special permit for such removal has been obtained previously from the Licensing Authority in charge of the area:

Provided that no such permit shall be granted to any person other than a person holding a licence for the tapping of Neera producing trees and for drawing Neera therefrom for the manufacture of gur or any other product which is not an intoxicant.

14.

Inspection of trees.

- Any person tapping trees for drawing Neera therefrom under rules shall bring down the receptacles attached to any of the trees so tapped for inspection on demand by any Excise Officer responsible for checking the breach of the conditions of the licence.

15.

Accounts.

- The licensee shall maintain an account book showing the number of trees tapped under his licence, every day, the total quantity of Neera drawn therefrom every day, the quantity of Neera, if any, obtained by him every day from a person holding a licence for the supply of Neera and the quantity of Neera, if any, sold by him every day.

16.

Inspection of the place of manufacture or sale.

(a)

The place of manufacture or the place of sale as well as the account book shall be open to inspection by the Licensing Authority. The officer or authorised person shall record his observations in the inspection book maintained by the licensee.

(b)

A licensee shall always keep ready six test-tubes, one test-tube stand, a pair of tongs for holding test-tubes, one spirit lamp, spirit, one cleaning brush and one funnel in a clean condition at his own expense and shall produce them on demand by the Inspecting Officers for testing whether Neera kept at the place of manufacture for sale has fermented or not.

(c)

To test whether Neera has fermented or not, the Inspecting Officer will carry on the Iodoform test with the help of the materials mentioned in sub-rule (b) and with the help of iodine solution and strong caustic soda which will be supplied to them. The Excise Commissioner may, however require any other test for the purpose, to be done in such places or at other places as he may consider necessary from time to time.

17.

Penalty.

- In the event of any breach of any of the provisions of these Rules or any of the terms or conditions of a licence granted under these Rules, the licence shall be liable to be cancelled or suspended under Section 42 without prejudice to any other penalty to which the licensee may be liable under the Act or under any other law for the time being in force.

Form I

Form of Application

(See Rule 5)

To,

The Collector,
District,
Sir,

I, the undersigned.....residing at.....desire

(i)
[to tap the Neera producing trees described in the Schedule hereto and draw Neera therefrom]
[See also S.O. 187 dated 1.4.1991.]

-

(a)
for the manufacture of gur or any other article which is not an intoxicant;
(b)
for the supply of Neera -
(i)
to person manufacturing gur or any other article which is not an intoxicant from Neera; or
(ii)
to persons licensed to sell Neera by retail for consumption on premises;
(c)
for domestic consumption;
(ii)
to sell Neera for consumption on premises and accordingly apply for the necessary licence.

2. Number of members in my household who drink Neera are-

3.

1.

, hereby undertake to use the Neera for the above mentioned purposes.

Schedule

No. and kind of trees to be tapped

Situation of trees to be tapped

Owner's/Proprietor's name and signature in token

of his consent to the trees being tapped.

Remark.

1

2

3

4

Signature of the Applicant

Date.....

Place.....

Form II

(See Rule 3)

Licence for the tapping of Neera-producing trees and drawing Neera therefrom for the manufacture of gur or any other article which is not an intoxicant.

Licence is hereby granted under and subject to the provisions of the Bihar and Orissa Excise Act, 1915 and the Rules, regulations and orders made thereunder and the conditions of this licence to Sri.....(hereinafter called "the licensee") residing at.....authorising him during the period, the period commencing from.....to.....(both days inclusive) to tap and draw Neera for the manufacture of gur or any other article which is not an intoxicant at..... (hereinafter called "the place of manufacture") from the trees specified in the Schedule hereinafter appended (hereinafter referred to as "the said trees") growing within the limits of the village of in the police-station of.....in the district of.....and in the survey numbers specified in the said Schedule.

This licence is granted subject to the following conditions, namely:-

* Retain only that which is necessary and cancel the remaining items.

Not to be filled in the case of trees standing on Government land but a separate certificate from the Department

concerned be appended.

Conditions

1. The licensee shall not tap any trees other than the said trees nor shall be allow any Neera drawn under this licence to ferment. [No tree which is 1.50 metres in height from the ground level shall be tapped nor shall Neera be drawn therefrom.]

[Inserted by S.O. 1281 dated 18.8.1979.]

2. Each of the said trees shall be marked and numbered by the Excise Authorities in the manner specified in Rule 9 of the Bihar Neera Rules, 1953. The licensee shall not tap or cause to be tapped any of the said trees or draw or cause to be drawn Neera therefrom until the said trees are marked and numbered in the said manner. Neera shall be drawn and collected only in receptacles after treating the same in the following manner:-

[They should be thoroughly washed with water. They should then be half filled with water, which should be heated to boiling point and kept boiling for at least fifteen minutes. They should thereafter be emptied and heated on bare flame to kill any residual yeast cells. They should then be smoked over burning straw and leaves. 1.25 grams of lime per litre of Neera, in finely powdered state should be placed in the receptacles to keep the Neera in unfermented state.]

[Substituted by S.O. 1281 dated 18.8.1979.]

3. The licensee shall convey the entire quantity of the Neera drawn by him from the said trees under this licence to the place of manufacture by a direct route and to no other place.

4. No Neera shall be kept till the sunrise of the next day unless it is boiled; provided that no such boiled Neera shall be kept for more than 24 hours.

5. The licensee shall carry on the business either personally or by an agent duly authorised by him in this behalf by a written Nokarnama signed by himself. The name of each agent and the date of his appointment shall be communicated forthwith in writing by the licensee to the Licensing Authority having charge of the area in which the place of manufacture is situated. The licensee shall be responsible for breach of any of the conditions of this licence by any person authorized. The total number of employees at a time shall not exceed to number fixed by the Licensing Authority in this behalf.

6. The licensee shall abide by the conditions of the licence and the provisions of the Bihar and Orissa Excise Act, 1915, and the Rules, regulations and orders made thereunder and shall give an undertaking to that effect.

7. The licensee, his heirs, legal representatives or assignees shall have no claim whatsoever to the continuance or renewal of this licence after the expiry of the period for which it is granted. It shall be entirely within the discretion of the Licensing Authority to permit or not, the assignee of the licensee, in case of sale or transfer, or the heir or legal representative of the licensee in case of death, to have the benefit of the licence for the unexpired portion of the term for which it is granted.

8. In fraction of any of the above conditions will render the licence liable to forfeiture and to all or any of the penalties prescribed by law or Rules.

Particulars of trees in respect of which the licence is granted.

Schedule 2

Village and Survey no.

Description of field or garden

Number and kind of trees licenced to be tapped.

Remarks

Coconut, Palmyra Date, Sago Palm

1

2

3

4

Granted this the.....day of.....19.....

seal of the.....

Collector or Licensing Authority.

Collector or Licensing Authority.

Form III

(See Rule 3)

Licence to tap Neera-producing trees and draw Neera for domestic consumption.

Licence is hereby granted under and subject to the provisions of the Bihar and Orissa Excise Act, 1915 and the rules, regulations and orders made thereunder and the conditions of this licence to Shri.....(hereinafter called "the licensee") residing at.....authorising him during the period commencing from.....to.....(both days inclusive) to tap and draw Neera from the trees specified in the Schedule hereinafter appended (hereinafter referred to as "the said trees") growing within the limits of the village of in the police-station and in the survey number specified in the said schedule for the purpose of using the Neera for domestic consumption only by the licensee and the persons of his household.

Conditions

1. Each of the said trees hereby licenced to be tapped shall be, marked and numbered by the Excise Authorities in the manner specified in the Bihar Neera Rules, 1953. The licensee shall not tap or cause to be tapped any of the said trees or draw or cause to be drawn Neera therefrom, until the said trees shall have been marked and numbered as aforesaid.

[No tree which is 1.50 metres in height from the ground level shall be tapped nor shall Neera be drawn therefrom.]

[Inserted by S.O. 1261 dated 18.8.1979.]

The licensee shall not tap, or cause to be tapped or draw Neera from any tree not licensed to be tapped by him. Neera shall be drawn and collected only in receptacles after treating the same in the following manner:-

[They should be thoroughly washed with water. They should then be half filled with water, which should be heated to boiling point and kept boiling for at least fifteen minutes. They should thereafter be emptied and heated on bare flame to kill any residual yeast cells. They should then be smoked over burning straw and leaves. 1.25 grams of lime per litre of Neera in finely powdered state should be placed in the receptacles to keep the Neera in unfermented state.]

[Substituted by S.O. 1261 dated 18.8.1979.]

2. The licensee shall convey the entire quantity of the Neera drawn by him under this licence to his place of residence by direct route. The licensee shall not draw Neera from the said trees before sunrise or after sunset, The licensee shall not convey or allow to be conveyed any Neera drawn under this licence to any place other than his place of residence. He shall use such Neera only for the purpose of domestic consumption and shall not sell or supply Neera to others. The unconsumed balance of Neera may be used for the manufacture of gur or any other article which is not an intoxicant before it is fermented. Neera which is fermented shall be destroyed forthwith. No Neera shall be kept till sunrise of the next day unless it is boiled:

Provided that no such boiled Neera shall be kept for more than 24 hours.

3. The licensee shall not sell Neera to anybody, nor shall he give it to anybody except to a person belonging to his household for such person's personal consumption only,

4. The licensee may, by a written nokarnama signed by him, authorise any other person to tap the trees and to transport the Neera drawn from them. The licensee shall communicate such person's name and date of his appointment to the Licensing Authority having charge of the area in which the said trees are situated.

5. The licensee shall abide by the conditions of this licence and the provisions of the Bihar and Orissa Excise Act, 1915, and the rules, regulations and orders made thereunder and shall give an undertaking to that effect.

6. The licensee, his heirs, legal representatives or assignees shall have no claim whatsoever to the continuance or renewal of this licence, after the expiry of the period for which it is granted. It shall be entirely within the discretion of the Licensing Authority to permit or not the assignee of the licensee, in case of sale or transfer or the heir or legal representative of the licensee, in case of death, to have the benefit of the licensee for the unexpired portion of the term for which it is granted.

7. Infraction of any of the above conditions will render the licence liable to forfeiture and to all or any of the penalties prescribed by law or rules.

Explanation. - For the purposes of this licence, a household shall mean a group of persons residing and messing jointly as the members of one domestic unit.

Schedule 3

Number and kind of trees tapped.

Number and situation to be of field or garden and village.

Number of field or garden survey no.

Owner's name

1
2
3
4

Granted this the.....day of.....19.....

Seal of the.....

Collector or Licensing Authority.

Collector or Licensing Authority.

Form IV

(See Rule 3)

Licence for the retail sale of Neera for consumption on premises.

Licence is hereby granted under and subject to the provisions of the Bihar and Orissa Excise Act, 1915, and the rules, regulations and orders made thereunder and the conditions of the licence to Shri.....(hereinafter called "The licensee") residing at..... on payment of a fee of Rs.....authorising him during the period commencing from.....to.....(both days inclusive) to sell Neera by retail for consumption on his premises situated at.....(hereinafter called "the said place of sale").

The Licence is granted subject to the following conditions: namely:-

Conditions

1. The licensee shall not sell or expose for sale Neera unless -

(i)
it is pure according to the standard of quality prescribed by the Commissioner of Excise;

(ii)
it has been obtained either from his own tree or from a supplier approved and licensed by the Licensing Authority and at a rate not exceeding that fixed by the Commissioner of Excise from time to time under the Act.

2. The licensee shall not keep, sell or expose for sale Neera, which has begun to ferment or which was not drawn on the same day or which is adulterated.

The licensee shall forthwith destroy all Neera which is not in accordance with the standard prescribed and he shall not be entitled to any compensation therefor.

3. The licensee shall sell Neera only at rates not exceeding those fixed by the Commissioner of Excise from time to time under the Act.

4. The licensee shall not keep or store Neera in any place other than the said place of sale nor shall he allow any one to remove any quantity of Neera from the said place:

Provided that the unsold Neera may be removed to the place of manufacture of gur or any other article which is not intoxicant (if a separate place is approved for the purpose) and stored thereafter is boiled, in the manner prescribed.

5. The licensee shall not stock or sell Neera in a fermented state.

6. No Neera shall be sold or served outside the said place of sale which shall be kept clean and no one shall be allowed to remove the Neera sold to him outside the said place of sale. No Neera shall be sold before sunrise or after sunset. The unsold balance of Neera may be used for manufacture of gur or any other article which is not an intoxicant before it is fermented. Neera which is fermented shall be destroyed forthwith. No Neera shall be kept till sunrise of the next day unless it is boiled, provided that no such boiled Neera shall be kept for more than 24 hours.

7. The licensee shall be bound to supply at his cost sample of Neera; received or sold by him whenever required for analysis. The result of the analysis shall be binding on him for the purposes of dealing with him, either under the conditions of this licence or under the Bihar and Orissa Excise Act, 1915 and the rules, regulations and orders made thereunder.

8. The licensee shall provide himself with all the requisite receptacles, vessels, containers and glasses and standard measure of such metal and capacity as may be prescribed by the Commissioner of Excise. All the copper and brass pots used in the storage or selling shall be properly tinned from inside and kept clean.

9. This licence shall be hung up in a conspicuous position in the said place of sale and a signboard of the size and description specified by the Commissioner of Excise shall be affixed on the outside of the said place of sale. On such signboard the following words in Hindi shall be painted:-

[Licence to Sell Neera by Retail]

[See also S.O. 187 dated 1.4.1991.]

10. The licensee shall enter every day in the book of the supplier the quantity of Neera received by him daily from such supplier and shall sign his name under such entry in token of his having received such quantity of Neera. Similarly the licensee shall enter such quantity in the book maintained by him and obtain below such entry the signature of the supplier or his authorized agent in token of his having supplied such quantity of Neera.

11. The licensee shall not sell Neera except at the premises previously approved by the Commissioner of Excise, such premises, all stock of Neera contained therein, and all accounts relating to the sale of Neera, shall, at all reasonable times be opened to inspection by an officer of the Excise Department not below the rank of a Sub-Inspector or any other officer or person duly authorised in this behalf.

12. The licensee shall maintain such accounts as may be prescribed by the Commissioner of Excise under the Act. He shall also maintain a visit book serially paged for the remarks of the Inspecting Officers.

13. The licensee shall submit such returns as may be prescribed by the Commissioner of Excise on the 17th of every month.

14. The licensee shall furnish two sureties for the sum of Rs. 100 each as guarantee of his good behaviour and adherence to the terms of this licence.

15. The licensee shall carry on the business either personally or by an agent duly authorized by him in this behalf by written Nokarnama signed by himself. The name of each agent and the date of his appointment shall be communicated forthwith in writing by the licensee to the Licensing Authority, having charge of the area in which the said place of sale is situated. The licensee shall be responsible for the breach of any of the conditions of this licence committed by any person so authorised.

16. No partnership entered into by the licensee after the granting of the licence shall be recognised for the purpose of this licence, unless the Licensing Authority on receipt of an application from the licensee, agree in writing to enter the name of the partner in the licence.

17. The licensee shall abide by the conditions of this licence and the provisions of the Bihar and Orissa Excise Act, 1915 and the rules, regulations and orders made thereunder and shall give an undertaking to that effect.

18.

The licensee, his heirs, legal representative or assignees shall have no claim whatsoever to the continuance or renewal of this licence after the expiry of the period for which it is granted. It shall be entirely within the discretion of the Licensing Authority to permit or not the assignee of the licence, in case of sale or transfer, or the heir or legal representative of the licensee, in case of death to have the benefit of the licence for the unexpired portion of the term for which it is granted.

19.

Infraction of any of the above conditions will render the licence liable to forfeiture and to all or any of the penalties prescribed by law or rules.

Granted this the.....day of.....19.....

Seal of the Collector or Licensing Authority.

Collector or Licensing Authority.

Form V

(See Rule 3)

Licence to tap and draw Neera from Neera producing trees for the supply of Neera to persons manufacturing gur or any other article which is not an intoxicant from Neera or to persons licensed to sell Neera by retail for consumption on premises.

Licence is hereby granted under the subject to the provisions of the Bihar and Orissa Excise Act, 1915 and the rules, regulations and orders made thereunder and the conditions of this licence to Shri.....(hereinafter called "the licensee") residing at..... on payment in advance the sum of Rs.authorising him during the period commencing from.....to.....(both days inclusive) to tap for and draw Neera for the.....trees specified in the Schedule hereinafter appended (hereinafter referred to as

"the said trees") growing within the limits of the village of.....in the police station of in the district of and in the survey numbers specified in the said Schedule for the purpose of supply thereof to persons manufacturing gur or any other article which is not an intoxicant from Neera or to persons licensed to sell Neera by retail for consumption on premises.

The licence is granted subject to the following conditions namely:-

Conditions

1. Each of the said trees shall be marked and numbered by the Excise Authorities in the manner specified in Rule 9 of the Bihar Neera Rules, 1953. The licensee shall not tap or cause to be tapped any of the said trees or draw or cause to be drawn Neera therefrom until the said trees are marked and numbered as aforesaid. [No tree which is 1.50 metres in height from the ground level shall be tapped nor shall Neera be drawn therefrom.]

[Inserted by S.O. 1281 dated 18.8.1979.]

2. The licensee shall convey Neera drawn by him from the said trees to the place of manufacture or place of sale, as the case may be, of a licensee holding of licence in Form no II or Form no. IV, by a direct route and to no other place :

Provided that he may, with the written permission of the Licensing Authority or any other duly Authorized Officer, collect Neera drawn from trees in different carts or groves at a convenient central place before conveying it to such place. The licensee shall not draw Neera from the said trees before sunrise or after sunset and shall not except with the written permission of the Licensing Authority convey the Neera from the said trees at any time after 5 P.M. (standard time).

3. [Neera shall be drawn and collected in receptacles after treating the same in the following manner:-

They should be thoroughly washed with water. They should then be half filled with water which should be heated to boiling point and kept on boiling for fifteen minutes. They should be emptied and heated on bare flame to kill any residual yeast cells. They should then be smoked, over burning straw and leaves. 1.25 grams of lime per litre of Neera in finely powdered state should be placed in the receptacles to keep the Neera in unfermented state.]

[Inserted by S.O. 1281 dated 18.8.1979.]

4. The licensee shall carry on the business either personally or by an agent duly authorised by him in this behalf, by a written Nokarnama signed by himself. The name of each agent and the date of his appointment shall be communicated forthwith in writing to the Licensing Authority, having charge of the area in which the said place is situated. The licensee shall be responsible for breach of any of the conditions of this licence committed by any person so authorised.

5. The licensee shall not adulterate or mix Neera with any foreign substance or liquid whatsoever. He shall supply the Neera to persons holding a licence in Form no. IV at a rate not exceeding that fixed by the Commissioner of Excise from time to time under the Act.

6. No Neera shall be kept till the day following that on which it is drawn. The unsold balance of Neera may be used for manufacturing gur or any other article which is not an intoxicant before it is fermented. Neera which is fermented shall be destroyed forthwith.

7. Any Officer of the Palm gur, Excise, Revenue or Police Department shall have free access at any time by day or by night to the trees hereby licensed to be tapped.

8. No Neera shall be kept till sunrise of the next day unless it is boiled provided that no such boiled Neera shall be kept for more than 24 hours.

9. The licensee shall abide by the conditions of this licence and the provisions of Bihar and Orissa Excise Act, 1915 and the rules, regulations and orders made thereunder and shall give an undertaking to that effect.

10. The licensee, his heirs, legal representatives or assignees shall have no claim whatsoever to the continuance or renewal of this licence after the expiry of the period for which it is granted. It shall be entirely within the discretion of the Licensing Authority to permit or not the assignee of the licensee, in case of sale or transfer, or the heir or legal representative of the licensee, in case of death, to have the benefit of the licence for the unexpired portion of the term for which it is granted.

11. Infraction of any of the above conditions will render the licence liable to forfeiture and to all or any of the penalties prescribed by law or rules.

Schedule 4

Number and kind of trees to be tapped.

Place and situation of field or garden and village

Number of field or garden survey no.

Proprietor's name.

1

2

3

4

Granted this the.....day of.....19.....

Seal of the.....

Collector or Licensing Authority.

Collector or Licensing Authority.

Related AI tags, queries and research notes

Translation